HILCHOT SHABBAT

Selecting & Sorting: The Three Conditions — Hilchot Shabbat

Given Thursday 16 April 2026 · מלאכת בורר — Siman 319: Seifim 1–4

Siman: 319 (Borer — Selecting and Sorting on Shabbat) **Seifim:** 1, 2, 3, 4 (the core principles)
Topics: The Three Conditions of Borer, Definition of Immediate Use, Utensils, Ochel from Psolet

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Background: Three Melachot of Selection

Borer doesn't exist in isolation — it's one of three melachot that all involve selection/sorting. Understanding the context:

The Process in the Mishkan

- The first 11 melachot relate to preparing dyes for the roof of the Mishkan
- The sequence: Plow → Plant → Harvest → Gather → Thresh (Dash) → then three kinds of selection:

Melacha #	Name	What It Is	How
6	**Zoreh** (Winnowing)	Separating pods from seeds	Using wind/air force
7	**Borer** (Selecting)	Removing chaff/unwanted material from seeds	By hand or utensil
9	**Meraked** (Sieving)	Ensuring everything is ground properly	Using a sieve

- After these: Tochen (grinding, melacha 8) → then sieving (melacha 9) → kneading → baking

The Differences Between the Three

- **Zoreh** — Very specific: selection through wind/air force only
- Practical example today: blowing chaff off peanuts = de'oraita (using breath as air force to separate wanted from unwanted)
- Not much else to discuss — very narrow melacha
- **Meraked** — Very specific: selection using a sieve
- Word comes from לרקוד (to dance) — you move the sieve up and down
- Will be covered later in this siman
- **Borer** — The broad category: ALL other kinds of selection
- This is the main melacha we discuss — most practical, most commonly violated

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The Three Conditions of Borer

Source: The Gemara (Shabbat)

תנו רבנן היו לפניו מיני אוכלין בורר ואוכל בורר ומניח ולא יבור ואם בורר חייב חטאת

- The Baraita says three things: select, then don't select, then if you did select you're chayav
- The Gemara asks: what does this mean?
- Five answers given — first two rejected, three accepted
- **All three accepted answers are required together** — the Rishonim agree on this

The Three Answers (= Three Conditions)

1. Rav Yosef — Type of Utensil:

- Hand = **permitted**
- Non-specialized utensil (funnel, dish) = **forbidden rabbinically** (patur)
- Specialized utensil (sieve) = **forbidden de'oraita** (chayav)

2. Rav Hamnuna — Direction of Selection:

- Selecting the **wanted from the unwanted** (ochel from psolet) = permitted
- Selecting the **unwanted from the wanted** (psolet from ochel) = **forbidden de'oraita**

3. Abaye — Time Frame:

- Selecting for **immediate use** (le'altar) = permitted
- Selecting for **later use** = **forbidden de'oraita** (as if selecting for storage — לאוצר)

Why All Three Together = Permitted (Derech Achilah)

- In principle, ALL acts of selection should be forbidden — because in the Mishkan they selected
- But when all three conditions are met together → it's considered **derech achilah** (the normal way of eating)
- Anything that's part of the act of eating is permitted
- Analogy: squeezing grapes is forbidden on Shabbat → but chewing grapes in your mouth (which squeezes out juice) is fine because it's derech achilah
- Same principle applies across all food-related melachot

The Prerequisite: There Must Be a Mixture (Ta'arovet)

- **Borer only applies when there is an existing mixture**
- If there's no mixture → no borer, even if you're "sorting"

Example — No mixture:

- 10 identical pink lady apples, all in excellent condition
- Taking 5 for now and leaving 5 for later = fine — there's no mixture here

What constitutes a mixture? (To be discussed in detail later)

- Different types of nuts in one bowl = mixture
- Different coloured apples? Different varieties?

- Salmon: fried vs. roasted vs. coated — one food or a mixture of types?
- Salmon with bones — is that a mixture? Or is it derech bri'ato (the way it was created)?

Seif א (Aleph): Utensils — Three Levels

The Shulchan Aruch's Ruling

הבורר אוכל מתוך פסולת... או שהיו לפניו שני מיני אוכלין ובירר מין ממין אחר

Important first point: Borer applies even when BOTH items are perfectly good food

- Example: bowl of pistachios and peanuts — both are ochel (edible, good)
- But right now I only want pistachios → the peanuts are "psolet" (unwanted) relative to me
- **Ochel/psolet = wanted/unwanted — NOT necessarily good/bad**

The Three Levels of Utensils

Utensil Type	Example	Status
Specialized sieve (נפה וכברה)	Fine sieve, coarse sieve	**Chayav** — de'oraita
Non-specialized utensil (קנון ותמחוי)	Funnel, dish, cone	**Patur** — forbidden rabbinically
Hand (ביד)	Your hand	**Mutar** — permitted

- **Why the sieve is de'oraita:** Using a specialized selection utensil = derech berirah (industrial/professional level). No longer considered part of eating — it's an act of melacha.
- **Why a non-specialized utensil is derabanan:** It's not the professional way to select, but it's still using a tool — so Chachamim forbade it
- **Why the hand is permitted:** Combined with the other two conditions → it's just part of eating

Question from the shiur — What about cutlery? To be discussed in detail next class — cutlery is not a specialized selection utensil.

Seif ב (Bet): Immediate Use — The Time Frame

The Shulchan Aruch's Ruling

הבורר אוכל מתוך הפסולת בידו להניחו אפילו לבו ביום נעשה כבורר לאוצר וחייב

- Even with your hand, even ochel from psolet → if you leave it for later in the day = **chayav de'oraita**
- It's as if you're selecting for storage (לאוצר)

The Rema: What Does "Immediate" Mean?

וכל מה שבורר לצורך אותה סעודה שמסב בה מיד מיקרי לאלתר

- **Anything for the upcoming meal you're about to sit down to = le'altar (immediate use)**
- Even if it's for the second course, third course, or dessert
- Don't need to stop mid-meal and go prepare each course separately

- The norm: when you prepare a meal, you prepare ALL courses at once — that's derech achilah

Key Ruling: You Can Select for Others Too

ואפילו אחרים אוכלים עמו שרי

- You can do borer for other people — not just yourself
- One person can prepare and select for the whole table
- The Mishnah Berurah: even for someone you won't be eating with — as long as for THEM it's wanted, with your hand, for their immediate use

The Rema's Practical Example

ולכן מותר לברור הירק שקורין סאלאטין מן העלים המעופשים

- Therefore: permitted to select good lettuce leaves from bad/wilted ones when making a salad for the upcoming meal

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Detailed Analysis: What Does Le'altar (Immediate) Mean?

Point 1: If You Didn't End Up Eating It All — Fine

- Made a big salad with many acts of selection → only ate half → leaving rest for seudah shlishit
- **Permitted** — because מלאכת מחשבת אסרה תורה — the Torah follows your intention at the time of the action
- At the time of selecting → your intention was for the upcoming meal → that's what matters

Point 2: What If You Change Your Mind Immediately After?

- Selected Brazilian nuts for the meal → finished selecting → then decided "too many calories, I don't want them"
- **Pri Megadim:** Not correct to do this (doesn't explain why)
- **Sha'ar HaTziyun (Mishnah Berurah):** Disagrees — "I don't understand his reasoning, he needs to prove this"
- **Chacham Ovadia:** Agrees with the Mishnah Berurah — no problem
- **Ben Ish Chai:** Rules it's forbidden (like the Pri Megadim)
- **Halacha:** Permitted — at the time of the act, the intention was for immediate use. That's what counts.
- **Caveat:** If in the back of your mind you always intended to leave it for later — that's genuinely assur. You can't trick Hashem.

Point 3: Preparing a Full Plate for Guests (Ben Ish Chai)

- Making a big platter for guests → you know they won't finish it all
- **Permitted** — the "use" is impressing your guests with a full table
- That IS the immediate use — the presentation itself
- Even if you're doubtful whether they'll eat any of it at all → still fine
- The point is: I'm putting it out NOW for you to see NOW

Point 4: How Long Before the Meal? The Major Question

Three opinions:

Posek	How Long Before the Meal?
Ben Ish Chai	Up to **1 hour** before (understood "sha'ah" in the Mordechai literally)
Rav Ben Tzion Abba Shaul	Up to **half an hour** (from "samuch le-Minchah" = half hour)
Chacham Ovadia	**A few minutes** — literally just before

Rabbi Kada's position: It's not about minutes — it's about **mindset and engagement**

- Am I NOW doing actions for THIS meal?
- If I have 50 guests → preparation takes 2 hours → that's all le'altar because I'm actively engaged the entire time
- If I have 1 person → takes 2 minutes → that's le'altar
- The frame: I am currently, actively, imminently preparing to eat

Point 5: Chacham Ovadia on Birkat HaMazon

- Family does Birkat HaMazon in the middle of the meal → then wants dessert after
- Someone goes to prepare dessert during Birkat HaMazon
- **Chacham Ovadia says: don't do this**
- Birkat HaMazon = ending a meal → you're NOT about to imminently eat
- Even though dessert is 5 minutes away after benching
- **Wait** until after Birkat HaMazon → then do your selecting → then eat dessert
- This underscores: it's about mindset, not minutes

Point 6: Rav Shlomo Zalman Auerbach — Sometimes Hours Before Is Fine

- Example: vegetables that need to soak in oil and lemon for 2 hours for optimal taste
- I want to eat at 12:00 → this needs to start soaking at 10:00 → I need to select and prepare at 9:55
- **Permitted** — because the ONLY way to eat this at 12:00 is to prepare it at 10:00
- The preparation at 10:00 IS part of eating at 12:00 → it's derech achilah
- Same logic: anything that's a necessary preliminary step for the meal = le'altar

Point 7: Borer for Animals

- You can do borer for your animals as well — same conditions apply
- Bi'ur Halacha discusses this — quite obvious but worth noting

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Seif ג (Gimmel): Repetition of Principles

- Repeats in different forms the first two conditions (utensil + time frame)
- No new major chiddushim beyond Seifim 1–2

Seif ד (Dalet): Psolet from Ochel — The Third Condition

The Shulchan Aruch's Ruling

הבורר פסולת מתוך אוכל אפילו בידו אחת חייב

- Selecting the **unwanted from the wanted** — even with your hand, even with ONE hand — **chayav de'oraita**

Why This Way Is Forbidden

- The normal act of borer (in the Mishkan): you have good material in front of you → you remove what's bad
- That's the industrial/professional way to select
- When you do the OPPOSITE (take the good out from the bad) → you're doing it in a non-professional way → it's part of eating
- **Question from the shiur:** "Aren't these two sides of the same coin?"
- **Answer:** The norm of borer is taking away what's unwanted from a pile of what's wanted
- Normally the majority = the ochel (wanted)
- Taking away psolet from ochel = the way a professional would do it
- Taking ochel from psolet = the way an eater would do it
- That's the conceptual distinction — even though the result is the same

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If You Violated Borer — Status of the Food

Intentional (Be-Mezid)

- Standard rule of ma'aseh Shabbat: forbidden for you **forever**, for others until **motzei Shabbat**
- **Ben Ish Chai:** Rules this way — the separated food has the standard issur

Can You "Undo" the Borer by Putting It Back?

- **If you put it back** (mix it all together again) → then re-select properly:
- **Chacham Ovadia:** Permitted — because you've removed all benefit from the original melacha
- Similar to: if you washed a shirt on Shabbat intentionally → can wear it again after Shabbat if you dirty it first
- **Does putting it back count as teshuvah for the act?**
- **Ben Ish Chai:** No — you go after your machshavah at the time of the act. You did the melacha. Putting it back later doesn't retroactively undo the sin.
- Nice gesture, but the melacha was done

Unintentional (Be-Shogeg)

- Already learned: be-shogeg → permitted even on Shabbat itself
- Most cases of borer violations on Shabbat are be-shogeg

Important Questions to Be Discussed in Coming Classes

1. **What counts as a "hand"?** — cutlery, peelers, forks, spoons
2. **Borer with non-food items?** — socks in a drawer, books on a shelf
3. **Solids mixed with liquids** — a fly in soup
4. **One body = a mixture?** — bones in chicken, stem on a tomato (derech bri'ato)
5. **How to define a "mixture"** — different colours? different varieties? different preparations?
6. **Good from bad vs. bad from good** — what if the majority is the psolet?

Key Practical Summary

1. **Borer = selecting from a mixture.** No mixture → no borer.
2. **Three conditions must ALL be met:** hand (not a sieve), ochel from psolet, and le'altar (immediate use).
3. **Le'altar = for the upcoming meal.** All courses of that meal count. Preparing for others is fine.
4. **It's about mindset, not minutes.** Am I actively, imminently preparing to eat?
5. **Don't prepare dessert during Birkat HaMazon** — wait until after.
6. **If food needs soaking/preparation time** → selecting earlier is fine because it's a necessary step.
7. **Ochel and psolet = wanted and unwanted** — not necessarily "good" and "bad." Two good foods can be ochel/psolet relative to each other.
8. **Many people stumble with borer** (Mishnah Berurah) — it's a melacha that requires careful understanding.

Preview: Next Shiur

- Detailed laws of utensils — cutlery, peelers, strainers
- Ochel from psolet — defining "wanted" and "unwanted" in detail
- What if the majority is the unwanted?
- Non-food borer
- Solids and liquids

Shabbat Shalom — Chodesh Iyar Tov

Watch or listen to this shiur: youtu.be/fiHy6iHBg0Q · More shiurim: rabbikada.com